

Franciscus Dylan Rosario,
7624 Melody,
Rohnert Park, CA 94928,
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802
(Related: CGC-21-594102)

TO

**NOTICE OF LODGING —
PRONG-ONE
OPPOSITION CHECKLIST
(Cal. R. Ct., rule 3.1110(f))**

Anti-SLAPP Hearing: May 13, 2026
Time: 9:00 a.m.
Dept.: 302
Judge: Hon. Joseph M. Quinn

Lodging only; not for adjudication on
Apr. 30, 2026 (MFL-SAC) or May 6, 2026
(MFL-TAC).

ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that, for the limited purpose of record preservation in connection with Defendant CSAA Insurance Exchange's noticed special motion to strike under Code of Civil Procedure § 425.16, set for hearing **Wednesday, May 13, 2026**, 9:00 a.m., Department 302 (Hon. Joseph M. Quinn), Plaintiff Franciscus Dylan Rosario, in pro per, hereby lodges with the Court the **Merged Prong-One Opposition Checklist** dated April 28, 2026 (Exhibit 1).

This lodging is made under California Rules of Court, rule 3.1110(f). It is **not** offered for adjudication on the **April 30, 2026** MFL-SAC hearing in this action before Hon. Joseph M. Quinn

(Dept. 302), and **not** for the **May 6, 2026** MFL-TAC hearing in companion CGC-25-631801 before Hon. Christine Van Aken (Dept. 301). It is offered to preserve, on the docket, Plaintiff's prong-one defenses **before** the noticed May 13, 2026 anti-SLAPP hearing in this action and **before** the May 12, 2026 anti-SLAPP hearing in companion CGC-25-631801.

The lodged checklist is Plaintiff's working synthesis of California anti-SLAPP prong-one doctrine, organized in three substantive parts:

- **Part I — Shared Items 1–13** (case-neutral prong-one defects);
- **Part II — Case-specific items 801-A through 801-E** (companion CGC-25-631801); and
- **Part III — Case-specific items 802-A through 802-F** (this action).

The same exhibit is being lodged contemporaneously in companion CGC-25-631801 to preserve the **Position-A / Position-B** structural-impossibility spine pleaded in both Third Amended Complaints (item 801-D = item 802-D).

Plaintiff **does not** seek any merits ruling on the lodged checklist at any present hearing. Plaintiff will rely on the substantive prong-one positions in Plaintiff's forthcoming **Opposition to Defendant's Special Motion to Strike** (to be filed in conformity with Code Civ. Proc. § 1005(b) for the May 13, 2026 hearing) and in any tendered standalone California Rule of Professional Conduct 3.3(a)(2) outer-limit notice. The lodged checklist is preserved here so that, if a question of preservation, waiver, or candor under rule 3.3(a)(2) later arises, the controlling prong-one authorities — including *Park, Bonni, Baral, Rusheen, Kwikset, Neville, Briggs, Kimmel, Flatley, Egan, Wilson v. 21st Century, Engalla*, the Insurance Code § 790.03(h) regulatory floor, and the 10 CCR § 2695.7 claim-investigation standards — appear on the docket as of April 28, 2026.

LODGED DOCUMENTS

Plaintiff lodges:

1. **Exhibit 1 — Merged Prong-One Opposition Checklist (Apr. 28, 2026).** The substantive exhibit is lodged in companion Case No. CGC-25-631801 under the same date and caption.
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1 **RESERVATION OF RIGHTS**

2 Lodging this checklist does not waive any right and is not a tender of merits argument on the May
3 13, 2026 special motion to strike. Plaintiff reserves all rights, including (i) full briefing in the
4 noticed Opposition; (ii) Code Civ. Proc. § 425.16(c)(1) fees and sanctions if Defendant's motion
5 is denied; (iii) reservation of standalone California Rule of Professional Conduct 3.3(a)(2) candor
6 notice on the **outer-limit prong-one authorities** (Insurance Code § 790.03(h); 10 CCR § 2695.7;
7 *Egan; Wilson v. 21st Century*). If the Court requires a separate reservation number for lodging-only
8 papers, Plaintiff will comply on request.

Dated: April 28, 2026



Franciscus Dylan Rosario
Plaintiff, In Pro Per

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